

HOUSE No. 5633

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill authorizing the Commonwealth of Massachusetts, acting by and through its Division of Capital Asset Management and Maintenance, to grant permanent easements over certain land in the town of Milton for highway purposes (Senate, No. 2968), reports recommending that the same ought to pass with amendments striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5633; by striking out the emergency preamble inserting in place thereof the following emergency preamble:

“Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the commissioner of capital asset management and maintenance, in consultation with the commissioner of conservation and recreation, to grant certain easements to the Massachusetts Department of Transportation for highway purposes to support the intersection improvement project being undertaken by the commonwealth at the intersection of Randolph avenue, state highway route 28, and Chickatawbut road, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety and convenience.”; and by striking out the title and inserting in place thereof the following title: “An Act authorizing the division of capital asset management and maintenance to grant permanent easements over certain land in the town of Milton for highway purposes.”.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. Notwithstanding sections 32 to 38, inclusive, of chapter 7C of the General
2 Laws or any general or special law to the contrary, the commissioner of capital asset
3 management and maintenance, in consultation with the commissioner of conservation and
4 recreation, may transfer to the Massachusetts Department of Transportation for highway
5 purposes, certain parcels of land under the care and control of the department of conservation
6 and recreation for open space and park purposes and located in the town of Milton and identified
7 as permanent easement parcel numbers 8-E-3, 8-E-4, 8-HL-1, 8-HL-2, 8-HL-3, 8-HL-PUE-4, 8-
8 HS-1, 8-W-4, 8-D-1 and 8-PUE-W-5 on a plan of land entitled, “Massachusetts Department of
9 Transportation Highway Division Plan and Profile of Reconstruction of Randolph Avenue
10 (Route 28) at Chickatawbut Road in the Town of Milton Norfolk County Federal Aid Project No.
11 Preliminary Right of Way Plans”, which is on file with the Massachusetts Department of
12 Transportation.

13 SECTION 2. (a) As mitigation for the transfers described in section 1, the Massachusetts
14 Department of Transportation shall compensate the department of conservation and recreation in
15 an amount not less than 110 per cent of the fair market value or value in use of the impacted
16 lands, whichever is greater, as determined by an independent professional appraisal prepared in

17 accordance with the usual and customary professional appraisal practice by a qualified appraiser
18 commissioned by the commissioner of capital asset management and maintenance, in
19 consultation with the commissioner of conservation and recreation.

20 (b) The department of conservation and recreation shall deposit such funds into the
21 Conservation Trust established in section 1 of chapter 132A of the General Laws and shall
22 expend such funds within 3 years to acquire land or interests in land, which it shall permanently
23 hold and manage for conservation and recreation purposes and which shall be in a comparable
24 location and of equal or greater natural resource value as determined by the secretary of energy
25 and environmental affairs.

26 (c) The commissioner of capital asset management and maintenance shall submit the
27 appraisal and a report thereon to the inspector general for review and comment. The inspector
28 general shall review and approve the appraisal and the review shall include an examination of the
29 methodology utilized for the appraisal. The inspector general shall prepare a report of the review
30 and file the report with the commissioner of capital asset management and maintenance, who
31 shall submit copies of the appraisal and the inspector general's report and comments, if any, to
32 the house and senate committees on ways and means and the joint committee on state
33 administration and regulatory oversight not less than 15 days prior to the execution of the
34 conveyance authorized in section 1.

35 SECTION 3. The Massachusetts Department of Transportation shall assume all costs
36 associated with engineering, surveys, appraisals, deed preparation and other expenses necessary
37 to execute the conveyances authorized in section 1; by striking out the emergency preamble
38 inserting in place thereof the following emergency preamble:

39 “Whereas, The deferred operation of this act would tend to defeat its purpose, which is to
40 authorize forthwith the commissioner of capital asset management and maintenance, in
41 consultation with the commissioner of conservation and recreation, to grant certain easements to
42 the Massachusetts Department of Transportation for highway purposes to support the
43 intersection improvement project being undertaken by the commonwealth at the intersection of
44 Randolph avenue, state highway route 28, and Chickatawbut road, therefore it is hereby declared
45 to be an emergency law, necessary for the immediate preservation of the public safety and
46 convenience.”; and by striking out the title and inserting in place thereof the following title: “An
47 Act authorizing the division of capital asset management and maintenance to grant permanent
48 easements over certain land in the town of Milton for highway purposes.”.